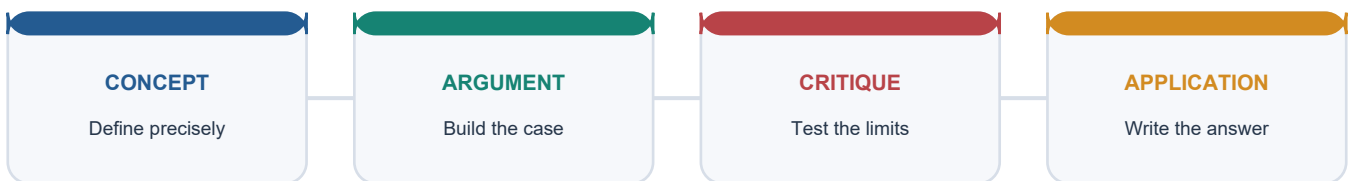


SOLVED PRACTICE WORKBOOK

Election Commission - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

ELECTION COMMISSION - SOLVED PRACTICE WORKBOOK	4
WORKBOOK CONTROL	4
BASIC MCQS / REMEDIATION	4
32 ORIGINAL MCQS - STRICT KEY SEQUENCE ABCD x 8	4
MCQ 1	4
MCQ 2	4
MCQ 3	4
MCQ 4	5
MCQ 5	5
MCQ 6	5
MCQ 7	5
MCQ 8	6
MCQ 9	6
MCQ 10	6
MCQ 11	7
MCQ 12	7
MCQ 13	7
MCQ 14	7
MCQ 15	8
MCQ 16	8
MCQ 17	8
MCQ 18	9
MCQ 19	9
MCQ 20	9
MCQ 21	9
MCQ 22	10
MCQ 23	10
MCQ 24	10
MCQ 25	10

MCQ 26	11
MCQ 27	11
MCQ 28	11
MCQ 29	12
MCQ 30	12
MCQ 31	12
MCQ 32	12
PYQS AND ANSWER PRACTICE	13
PYQ-P1 - UPSC PRELIMS 2021 GS-I Q80	13
PYQ-P2 - UPSC PRELIMS 2024 GS-I Q71	13
PYQ-M1 - UPSC 2018 GS-II Q1	13
PYQ-M2 - UPSC 2019 GS-II Q11	14
PYQ-M3 - UPSC 2020 GS-II Q1	14
PYQ-M4 - UPSC 2022 GS-II Q11	14
PYQ-M5 - UPSC 2022 GS-II Q15	15
PYQ-M6 - UPSC 2024 GS-II Q1	15
PYQ-M7 - UPSC 2025 GS-II Q1	15
ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS	16
ORIGINAL MAINS 1 - Explain why Article 324 is a reservoir of power but not a source of authority contrary to election law. (10 marks, 150 words)	16
ORIGINAL MAINS 2 - Distinguish the constitutional position of the CEC from that of the other Election Commissioners. (10 marks, 150 words)	16
ORIGINAL MAINS 3 - Critically examine the appointment architecture under Act 49 of 2023. (15 marks, 250 words)	16
ORIGINAL MAINS 4 - The Model Code of Conduct gains from flexibility but loses legitimacy through opacity. Discuss. (15 marks, 250 words)	17
ORIGINAL MAINS 5 - Evaluate the ECI as an electoral-trust ecosystem rather than merely an election-day manager. (20 marks, 250 words)	17
ORIGINAL MAINS 6 - Propose a balanced reform programme for political parties, criminalisation and campaign information without granting unbounded power to the ECI. (20 marks, 250 words)	17

ELECTION COMMISSION - SOLVED PRACTICE WORKBOOK

WORKBOOK CONTROL

- Exactly 32 original MCQs appear before PYQs.
- Correct-key sequence is ABCD repeated eight times.
- Every MCQ has four option-specific explanations and one unique examiner trap.
- Official keys are stated only where locally held. The 2021 Prelims answer is explicitly inferred.
- Original Mains practice contains exactly six models: two 10-mark, two 15-mark and two 20-mark answers.

BASIC MCQS / REMEDIATION

32 ORIGINAL MCQS - STRICT KEY SEQUENCE ABCD x 8

MCQ 1

Article 324 directly covers which election?

A. Vice-President B. Municipal corporation C. Gram Panchayat D. Cooperative society

Answer: A.

Option-by-option explanation

- **A:** Vice-Presidential elections are expressly inside Article 324.
- **B:** Municipal corporations fall under Article 243ZA and the SEC.
- **C:** Gram Panchayat polls fall under Article 243K and the SEC.
- **D:** A cooperative society is not one of Article 324's four election fields.

Examiner trap 1: Local-body and private-association elections are outside the ECI field.

MCQ 2

Article 325 primarily guarantees:

A. a special roll for minorities B. one general roll without exclusion or special claim only on religion, race, caste or sex
C. automatic enrolment without residence D. voting rights for non-citizens

Answer: B.

Option-by-option explanation

- **A:** Article 325 rejects identity-based special rolls rather than creating them.
- **B:** This reproduces Article 325's one-general-roll equality rule.
- **C:** Ordinary residence remains a lawful enrolment condition under the RPA 1950.
- **D:** Citizenship remains essential; Article 325 does not enfranchise non-citizens.

Examiner trap 2: One general roll does not abolish citizenship, age or residence conditions.

MCQ 3

Which statement on Article 326 is correct?

A. It covers every local election. B. It fixes voting age at twenty-one. C. It bases Lok Sabha and Assembly elections on adult suffrage, presently eighteen. D. It bars statutory disqualification.

Answer: C.

Option-by-option explanation

- **A:** Article 326 addresses Lok Sabha and Assembly adult suffrage, not every local poll.
- **B:** The 61st Amendment lowered the age from twenty-one to eighteen.
- **C:** This states the present constitutional suffrage rule accurately.

- **D:** Article 326 expressly permits constitutional or statutory disqualifications.

Examiner trap 3: Do not confuse constitutional suffrage with an unconditional individual claim regardless of law.

MCQ 4

The correct relationship between Articles 327 and 328 is:

A. States have exclusive election law power. B. ECI makes all election statutes. C. Parliament cannot legislate on State elections. D. State legislative power is subject to the Constitution and parliamentary law.

Answer: D.

Option-by-option explanation

- **A:** States do not possess an exclusive field once Parliament legislates.
- **B:** The ECI administers law; it is not the general statute-making body.
- **C:** Article 327 expressly authorises Parliament to legislate.
- **D:** Article 328's State power is constitutionally and statutorily subordinate.

Examiner trap 4: Article 324 supervision does not replace legislative competence.

MCQ 5

Panchayat and municipal election control belongs constitutionally to:

A. State Election Commissions B. the ECI C. UPSC D. the Delimitation Commission

Answer: A.

Option-by-option explanation

- **A:** Articles 243K and 243ZA vest local-body election control in SECs.
- **B:** Article 324 does not include Panchayat or municipal elections.
- **C:** UPSC recruits public servants and has no election-management mandate.
- **D:** The Delimitation Commission draws boundaries; it does not conduct local polls.

Examiner trap 5: The SEC is not an ECI regional office.

MCQ 6

For a sitting MLA disqualification question under Article 192, the Governor must obtain the opinion of:

A. Speaker B. Election Commission of India C. State Election Commission D. High Court Registrar

Answer: B.

Option-by-option explanation

- **A:** The Speaker decides Tenth Schedule matters, not an Article 192 reference.
- **B:** Article 192 requires the Governor to obtain the ECI's opinion.
- **C:** The SEC has no role in State-legislator disqualification.
- **D:** A High Court may review lawfully, but its Registrar supplies no constitutional opinion.

Examiner trap 6: Tenth Schedule defection remains with the Speaker/Chairman.

MCQ 7

In a multi-member ECI, the CEC is best described as:

A. sole final authority B. holder of a casting vote C. Chairman with equal collegial decision-making power D. a ceremonial member

Answer: C.

Option-by-option explanation

- **A:** The CEC cannot unilaterally decide Commission business.

- **B:** Neither Article 324 nor section 18 creates a casting vote.
- **C:** Chairmanship coexists with equal voting and majority decision.
- **D:** The CEC has real chair and security functions, so the office is not ceremonial.

Examiner trap 7: Removal privilege must not be mistaken for decisional supremacy.

MCQ 8

A Regional Commissioner under Article 324 is appointed:

A. by a Governor without consultation B. by Parliament C. by the CEC personally D. by the President after consulting the ECI

Answer: D.

Option-by-option explanation

- **A:** A Governor does not appoint an Article 324 Regional Commissioner.
- **B:** Parliament supplies law but does not make this appointment.
- **C:** The CEC is consulted institutionally through the ECI; the CEC does not appoint personally.
- **D:** Article 324(4) gives the President this consultation-based appointing power.

Examiner trap 8: A Regional Commissioner is not the State Election Commissioner.

MCQ 9

Anoop Baranwal (2023) created which arrangement?

A. PM, Opposition leader and CJI until Parliament made a law B. a permanent constitutional CJI seat C. direct appointment by Supreme Court D. selection by Rajya Sabha

Answer: A.

Option-by-option explanation

- **A:** This is the Court's exact temporary PM-Opposition-CJI arrangement.
- **B:** CJI membership was expressly limited until parliamentary legislation.
- **C:** The Court did not transfer appointment power to itself.
- **D:** Rajya Sabha was not made the selecting institution.

Examiner trap 9: The decision did not prohibit Parliament from enacting a different committee.

MCQ 10

The Search Committee under section 6 of Act 49 of 2023 is headed by:

A. Cabinet Secretary B. Minister of Law and Justice C. Chief Justice of India D. CEC

Answer: B.

Option-by-option explanation

- **A:** The Cabinet Secretary does not head the enacted section 6 committee.
- **B:** Section 6 expressly names the Minister of Law and Justice.
- **C:** The CJI is absent from the statutory Search Committee.
- **D:** The CEC is the office being searched for, not the search chair.

Examiner trap 10: Bill-stage or coaching summaries naming the Cabinet Secretary are unsafe.

MCQ 11

The current Selection Committee consists of:

A. President, PM and CJI B. PM, CEC and LoP C. PM, LoP/largest opposition leader and PM-nominated Union Cabinet Minister D. Law Minister, Cabinet Secretary and CJI

Answer: C.

Option-by-option explanation

- **A:** The President appoints after recommendation but is not one of the section 7 selectors.
- **B:** The CEC is not a Selection Committee member.
- **C:** This is the enacted three-member Selection Committee.
- **D:** The Law Minister heads search, while the CJI is outside the enacted process.

Examiner trap 11: Search and selection bodies have different membership and functions.

MCQ 12

The current statutory tenure rule is:

A. five years without age cap B. six years fixed in Article 324 C. until President's pleasure D. six years or age sixty-five, whichever is earlier, with no reappointment

Answer: D.

Option-by-option explanation

- **A:** The Act does not prescribe a five-year term.
- **B:** Article 324 itself does not fix six years.
- **C:** CEC and ECs do not serve at ordinary presidential pleasure.
- **D:** Section 9 combines six years, age sixty-five and no reappointment.

Examiner trap 12: The six-year rule is statutory, not constitutional text.

MCQ 13

Section 10 of the enacted 2023 Act fixes salary equal to:

A. a Judge of the Supreme Court B. the Cabinet Secretary C. a High Court Chief Justice D. the Attorney General

Answer: A.

Option-by-option explanation

- **A:** Section 10 of the enacted Gazette text uses Supreme Court judge salary.
- **B:** Cabinet Secretary parity appeared in Bill-stage discussion, not enacted section 10.
- **C:** The Act does not use High Court Chief Justice salary.
- **D:** The Attorney General's remuneration is not the statutory comparator.

Examiner trap 13: Do not repeat the Cabinet-Secretary proposal associated with an earlier Bill stage.

MCQ 14

Which removal statement is correct?

A. Every EC needs parliamentary impeachment. B. Other ECs are removable only on the CEC's recommendation. C. The CEC serves at pleasure. D. Regional Commissioners have no protection.

Answer: B.

Option-by-option explanation

- **A:** Only the CEC uses the Supreme-Court-judge removal route.
- **B:** Other ECs need the CEC's recommendation before presidential removal.
- **C:** Article 324 rejects ordinary pleasure removal of the CEC.

- **D:** Regional Commissioners share the CEC-recommendation protection.

Examiner trap 14: Equal voting power does not equal identical removal route.

MCQ 15

Article 324(6) concerns:

A. party registration B. election petitions C. staff made available by President/Governor when ECI requests D. salary charged on the Consolidated Fund

Answer: C.

Option-by-option explanation

- **A:** Party registration is governed by RPA 1951 section 29A.
- **B:** Election petitions are governed by Article 329 and the RPA 1951.
- **C:** Article 324(6) is the staff-supply clause.
- **D:** No blanket charged-expenditure rule appears in clause (6).

Examiner trap 15: It does not itself create a separate permanent election civil service.

MCQ 16

The central holding of *T.N. Seshan* (1995) was that:

A. ECI may override statute B. CEC alone may decide C. other ECs are unconstitutional D. the multi-member Commission and collegial equality are valid

Answer: D.

Option-by-option explanation

- **A:** A.C. Jose, not T.N. Seshan, supplies the no-override rule.
- **B:** The judgment rejected CEC decisional supremacy.
- **C:** The case upheld rather than invalidated other ECs.
- **D:** The Court validated the multi-member, majority-based institutional design.

Examiner trap 16: CEC chairmanship and removal protection survived the equality holding.

MCQ 17

The RPA 1950 chiefly supplies:

A. allocation/constituency and electoral-roll framework B. the MCC C. Supreme Court election appeals only D. party manifestos

Answer: A.

Option-by-option explanation

- **A:** The RPA 1950 supplies allocation, constituency and roll architecture.
- **B:** The MCC is an ECI code, not the principal subject of the 1950 Act.
- **C:** Supreme Court appeals are part of the RPA 1951 dispute chain.
- **D:** Manifesto regulation is not the defining field of the 1950 Act.

Examiner trap 17: Conduct, corrupt practices and petitions are principally in the 1951 Act.

MCQ 18

Four electoral-roll qualifying dates are:

A. monthly B. 1 January, 1 April, 1 July and 1 October C. only 1 January D. dates fixed separately by every candidate

Answer: B.

Option-by-option explanation

- **A:** The statute does not open a qualifying date every month.
- **B:** The four dates are 1 January, 1 April, 1 July and 1 October.
- **C:** The former single-date system has been replaced.
- **D:** Qualifying dates are statutory national dates, not candidate choices.

Examiner trap 18: A qualifying date does not remove other eligibility requirements.

MCQ 19

When constituted, ordinary delimitation is performed by:

A. ECI alone B. Parliament's secretariat C. the statutory Delimitation Commission, with ECI participation as law provides D. State Election Commission

Answer: C.

Option-by-option explanation

- **A:** The ECI is not the sole delimiting body.
- **B:** A parliamentary secretariat does not adjudicate constituency boundaries.
- **C:** A statutory Delimitation Commission performs the exercise with ECI participation as provided.
- **D:** The SEC's field is local-body election administration.

Examiner trap 19: ECI assistance or ex officio membership is not sole ownership.

MCQ 20

The RPA 1951 principally covers:

A. only rolls B. only presidential elections C. only party registration D. conduct, candidates, disqualifications, corrupt practices, expenses and petitions

Answer: D.

Option-by-option explanation

- **A:** Electoral rolls are principally the RPA 1950 field.
- **B:** Presidential elections have a separate statute and are not the Act's only subject.
- **C:** Section 29A is only one component of the broader 1951 Act.
- **D:** This option states the Act's full operational range.

Examiner trap 20: Keep the 1950 infrastructure/1951 conduct distinction.

MCQ 21

Political-party registration is under:

A. RPA 1951 section 29A B. Article 329 C. RPA 1950 section 19 D. Tenth Schedule paragraph 6

Answer: A.

Option-by-option explanation

- **A:** Section 29A of the RPA 1951 is the registration provision.
- **B:** Article 329 concerns electoral judicial intervention and petitions.
- **C:** RPA 1950 section 19 concerns voter registration qualification.
- **D:** Tenth Schedule paragraph 6 concerns defection adjudication.

Examiner trap 21: Registration does not guarantee recognition or a reserved symbol.

MCQ 22

The *Institute of Social Welfare* (2002) rule is that ECI:

A. may dissolve any party B. has no general deregistration power, subject to narrow exceptions C. must deregister after every guideline breach D. cannot register parties

Answer: B.

Option-by-option explanation

- **A:** ECI cannot dissolve any party by unenumerated discretion.
- **B:** The judgment denies a general cancellation power while preserving narrow exceptions.
- **C:** A guideline breach alone does not create statutory deregistration authority.
- **D:** Section 29A expressly authorises registration.

Examiner trap 22: Derecognition and deregistration are different consequences.

MCQ 23

A recognised-party split symbol dispute is principally decided under:

A. MCC B. Article 103 C. paragraph 15 of the Symbols Order, 1968 D. section 151A

Answer: C.

Option-by-option explanation

- **A:** The MCC does not decide recognised-party split symbols.
- **B:** Article 103 concerns MP disqualification questions.
- **C:** Paragraph 15 of the Symbols Order supplies the rival-group route.
- **D:** Section 151A concerns the timing of by-elections.

Examiner trap 23: The decision concerns electoral identity, not every intra-party civil dispute.

MCQ 24

The MCC is best described as:

A. a constitutional amendment B. a complete criminal code C. a mere voluntary pamphlet with no ECI role D. a non-statutory code enforced through Article 324 and existing law

Answer: D.

Option-by-option explanation

- **A:** The MCC was not enacted as a constitutional amendment.
- **B:** It does not itself codify every campaign crime and penalty.
- **C:** It has substantial ECI-backed preventive operation.
- **D:** This accurately combines its non-statutory character and legal overlap.

Examiner trap 24: A non-statutory breach and a statutory offence must be analysed separately.

MCQ 25

Candidate affidavit disclosure is principally linked to:

A. the voter's Article 19(1)(a) right to information B. a presumption of guilt C. automatic disqualification for every pending case D. SEC supervision

Answer: A.

Option-by-option explanation

- **A:** ADR and PUCL ground material disclosure in the voter's speech right.
- **B:** A pending case or affidavit does not reverse the presumption of innocence.

- **C:** The Court did not impose automatic disqualification for every pending case.
- **D:** Candidate affidavits are administered in ECI elections, not by SECs generally.

Examiner trap 25: Disclosure is not conviction.

MCQ 26

Public Interest Foundation requires parties and candidates to:

A. conceal acquittals B. publicise criminal antecedents and party selection reasons as directed C. withdraw every accused candidate D. seek CEC permission for prosecution

Answer: B.

Option-by-option explanation

- **A:** The disclosure directions do not require concealing acquittals.
- **B:** Publicity and reason-giving are the central judicial directions.
- **C:** The Court stopped short of a universal withdrawal rule.
- **D:** Criminal prosecution does not depend on personal CEC permission.

Examiner trap 26: The Court did not enact a universal pre-trial disqualification.

MCQ 27

Which expenditure statement is correct?

A. Party and candidate ceilings are identical. B. Paid news can never affect accounts. C. Candidate accounts and ceilings are statutory; party expenditure is a distinct category. D. ECI may invent any financial offence.

Answer: C.

Option-by-option explanation

- **A:** Candidate and party expenditure are legally distinct categories.
- **B:** Paid news may be attributed to candidate expenditure on proof.
- **C:** This correctly states the statutory candidate-account boundary.
- **D:** Article 324 cannot manufacture an undefined financial offence.

Examiner trap 27: Always identify payer, candidate authorisation and legal consequence.

MCQ 28

Paid news is handled most accurately as:

A. automatic treason B. only an ethical concern C. proof of candidate guilt without hearing D. evidence-based media monitoring, possible expense attribution and applicable legal action

Answer: D.

Option-by-option explanation

- **A:** Paid news is not classified automatically as treason.
- **B:** It has legal and expenditure implications beyond ethics.
- **C:** A hearing and evidence remain necessary before adverse attribution.
- **D:** This states the evidence-based monitoring and legal-route approach.

Examiner trap 28: Suspicion alone is not a statutory finding.

MCQ 29

The constitutional value added by VVPAT is:

A. a voter-visible paper audit trail retained for verification B. a take-home receipt C. automatic full recount D. replacement of EVMs with postal ballots

Answer: A.

Option-by-option explanation

- **A:** VVPAT displays and preserves a paper audit record.
- **B:** The voter never receives the slip as a take-home receipt.
- **C:** Existing law does not require an automatic full manual recount.
- **D:** VVPAT supplements rather than converts EVMs into postal ballots.

Examiner trap 29: The slip remains sealed in the machine.

MCQ 30

The 26 April 2024 EVM-VVPAT judgment:

A. ordered paper ballots B. rejected universal 100% counting while adding limited safeguards C. abolished VVPAT D. barred technical verification

Answer: B.

Option-by-option explanation

- **A:** The Court rejected a return to paper ballots.
- **B:** It rejected universal counting but added preservation and verification safeguards.
- **C:** The judgment retained rather than abolished VVPAT.
- **D:** It created a limited technical-verification route instead of barring it.

Examiner trap 30: Do not convert rejection of one remedy into a declaration of infallibility.

MCQ 31

Section 151A ordinarily requires a by-election within:

A. three months always B. one year always C. six months, subject to statutory exceptions D. the next general election only

Answer: C.

Option-by-option explanation

- **A:** Section 151A does not use an unconditional three-month rule.
- **B:** One year relates to the remaining-term exception, not the ordinary deadline.
- **C:** The ordinary deadline is six months with two statutory qualifications.
- **D:** The vacancy is not automatically postponed to the next general election.

Examiner trap 31: The exception certification involves ECI consultation with the Central Government.

MCQ 32

Article 329(b) means:

A. all election action is immune forever B. only ECI can try petitions C. High Courts cannot hear election petitions D. legislative elections are ordinarily challenged by post-result election petition under law

Answer: D.

Option-by-option explanation

- **A:** Article 329 does not confer permanent immunity.
- **B:** High Courts, not the ECI, try legislative election petitions.

- **C:** Sections 80 and 80A expressly give High Courts the petition role.
- **D:** This accurately describes the post-result statutory channel.

Examiner trap 32: President/Vice-President disputes follow Article 71, not the High Court petition route.

PYQS AND ANSWER PRACTICE

PYQ-P1 - UPSC PRELIMS 2021 GS-I Q80

Official-paper wording held locally

Consider the following statements:

1. In India, there is no law restricting the candidates from contesting in one Lok Sabha election from three constituencies.
2. In 1991 Lok Sabha Election, Shri Devi Lal contested from three Lok Sabha constituencies.
3. As per the existing rules, if a candidate contests in one Lok Sabha election from many constituencies, his/her party should bear the cost of bye-elections to the constituencies vacated by him/her in the event of him/her winning in all the constituencies.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. 1 and 3 D. 2 and 3

Inferred answer - not an official local key: B.

Explanation. Section 33(7) presently limits candidature to two constituencies in the same general election, so statement 1 is false. The routed historical fact supports statement 2. Cost recovery is a reform proposal, not the existing rule in statement 3. Because a readable official 2021 key is not held locally, the answer remains explicitly inferential.

PYQ-P2 - UPSC PRELIMS 2024 GS-I Q71

Official Set A wording and key held locally

How many Delimitation Commissions have been constituted by the Government of India till December 2023?

A. One B. Two C. Three D. Four

Official local Set A key: D.

Explanation. Four statutory exercises followed the 1952, 1962, 1972 and 2002 Delimitation laws. This fact does not make ECI the sole delimiting authority.

PYQ-M1 - UPSC 2018 GS-II Q1

Official-paper wording held locally: "In the light of recent controversy regarding the use of Electronic Voting Machines (EVM), what are the challenges before the Election Commission of India to ensure the trustworthiness of elections in India?" (10 marks, 150 words)

Model answer. Trustworthiness is an ecosystem, not only a machine question. First, roll accuracy requires inclusion, notice before deletion and accessible correction. Second, the ECI must ensure neutral staff, secure custody and transparent counting. Third, money power, paid news, criminal antecedents and misinformation can make a technically secure poll substantively unfair. Fourth, technology needs visible audit. *Subramanian Swamy v. ECI* (2013) made VVPAT a confidence safeguard; *ADR v. ECI* (2024) retained EVM-VVPAT, rejected universal counting and added preservation and candidate-requested verification measures. Fifth, MCC complaints require prompt, comparable reasons. Yet unsupported fraud allegations should not be amplified. The answer is auditable procedure: publish aggregate verification outcomes, strengthen observer and candidate access, explain safeguards in plain language and provide swift legal remedies. The ECI earns trust not by demanding faith but by making each link - roll, campaign, poll, count and complaint - independently verifiable.

PYQ-M2 - UPSC 2019 GS-II Q11

Official-paper wording held locally: "On what grounds a people's representative can be disqualified under the Representation of Peoples Act, 1951? Also mention the remedies available to such person against his disqualification." (15 marks, 250 words)

Model answer. The RPA 1951 operationalises the "law made by Parliament" ground in Articles 102 and 191. Its principal disqualifications include conviction for specified offences under section 8; corrupt practices under section 8A; dismissal for corruption or disloyalty under section 9; subsisting government contracts under section 9A; office under a government company under section 10; and failure to lodge election-expense accounts under section 10A. *Lily Thomas v. Union of India* (2013) invalidated section 8(4), so a sitting legislator no longer receives an automatic grace period after a qualifying conviction.

Remedies depend on the source. An appellate stay of conviction, not merely suspension of sentence, can halt conviction-based consequences. Section 11 empowers the ECI to remove or reduce specified disqualification where the statute permits. A sitting-member question under Articles 103 or 192 goes to the President or Governor after obtaining the ECI's opinion. An election-petition judgment is appealable to the Supreme Court under section 116A. Defection is different: the Tenth Schedule assigns it to the Speaker or Chairman.

The system therefore combines strict grounds with layered review; its weakness is delay. Time-bound courts and reasoned ECI opinions should improve remedy without diluting proof.

PYQ-M3 - UPSC 2020 GS-II Q1

Official-paper wording held locally: "There is a need for simplification of procedure for disqualification of persons found guilty of corrupt practices under the Representation of Peoples Act. Comment." (10 marks, 150 words)

Model answer. Simplification is justified because the present chain can outlast the elected term, but the evidentiary threshold must remain strict. A section 123 corrupt practice is proved in a High Court election petition; section 99 may name guilty persons; section 8A disqualification then proceeds through the President acting on the ECI's opinion. Multiple stages protect fairness but reduce deterrence when hearings and references are delayed. Article 324 cannot authorise the ECI to bypass the petition and summarily declare guilt. Reform should therefore simplify time, service and coordination: dedicated election benches, digital filing and evidence, a published timetable for the court-ECI-President sequence, and reasoned decisions. Because the consequence can exclude a citizen from electoral participation for years, natural justice and appellate review remain essential. Simplify procedure, not proof.

PYQ-M4 - UPSC 2022 GS-II Q11

Official-paper wording held locally: "Discuss the procedures to decide the disputes arising out of the election of a Member of the Parliament or State Legislature under the Representation of the People Act, 1951. What are the grounds on which the election of any returned candidate may be declared void? What remedy is available to the aggrieved party against the decision? Refer to the case laws." (15 marks, 250 words)

Model answer. Article 329(b) channels a challenge to a parliamentary or State-legislature election into the RPA election-petition route. *N.P. Ponnuswami v. Returning Officer* (1952) explains the anti-interruption principle: ordinary litigation should not derail an election midway.

Under sections 80 and 80A, an election is questioned only by petition tried by the High Court. Section 81 generally requires presentation within forty-five days; section 83 requires material facts and full particulars of corrupt practice. The statutory trial follows with necessary parties and strict pleading requirements.

Section 100 permits an election to be declared void for lack of qualification or disqualification; corrupt practice by the returned candidate or election agent; improper rejection of nomination; and material effect caused by improper acceptance, corrupt practice by others, improper reception/refusal/rejection of votes, or non-compliance with the Constitution, Act, Rules or lawful orders. The High Court may dismiss, void the election or, where statutory conditions are met, declare another candidate elected. Section 116A provides appeal to the Supreme Court.

Indira Nehru Gandhi v. Raj Narain (1975) protected free and fair elections and judicial review. The design rightly preserves the poll timetable, but time-bound adjudication is necessary so victory does not exhaust the remedy.

PYQ-M5 - UPSC 2022 GS-II Q15

Exact official-paper wording held locally: "Discuss the role of the Election Commission of India in the light of the evolution of the Model Code of Conduct." (15 marks, 250 words)

Model answer. The MCC is a consensus-based, non-statutory code through which the ECI converts Article 324 supervision into rapid campaign-time standards. ECI material traces its origin to the 1960 Kerala election and its national evolution through the 1968-69 period and later party consultations.

From schedule announcement until completion, the ECI regulates meetings, processions, polling-day conduct, manifestos and misuse of official machinery; receives complaints; seeks responses; censures or restrains campaigners; and orders administrative correction. Its strength is preventive speed: transfers, advertising restraint or a campaign direction can remove an unfair advantage before ordinary litigation concludes.

The MCC is not itself a complete penal code. Bribery, undue influence, communal appeals and other conduct may separately attract the RPA 1951, BNS or another statute. *Abhiram Singh v. C.D. Commachen* (2017), for example, interprets section 123(3)'s corrupt-practice prohibition, not a free-standing MCC offence.

Weaknesses are inconsistent response time, limited direct sanctions and insufficient reasons. Full criminal codification may sacrifice speed. A hybrid reform should retain flexible preventive rules, codify serious misuse of state resources, and publish complaint timelines, reasons and statutory referrals. The ECI's legitimacy requires both immediacy and equal treatment.

PYQ-M6 - UPSC 2024 GS-II Q1

Exact wording preserved in the local owner: "Examine the need for electoral reforms as suggested by various committees with particular reference to 'one nation - one election' principle." (10 marks, 150 words)

Model answer. Electoral reform is needed in political finance, criminalisation, roll integrity, ECI independence and dispute delay; simultaneous elections are one contested proposal within that larger agenda. Supporters cite lower recurring administrative cost, fewer repeated MCC periods and policy continuity. Yet synchronisation must address Articles 83 and 172, mid-term dissolution, ECI capacity and the federal risk that State mandates become absorbed by a national campaign. Committee recommendations cannot replace constitutional consent. Priority should first go to transparent donations and digital ads, time-bound criminal and election trials, accurate rolls and a credible appointment process. Simultaneous elections should proceed only with a workable remainder-term or constructive-confidence design, federal consultation and judicial safeguards. Efficiency is valuable, but it cannot override representative accountability.

PYQ-M7 - UPSC 2025 GS-II Q1

Official-paper wording held locally: "Discuss the 'corrupt practices' for the purpose of the Representation of the People Act, 1951. Analyze whether the increase in the assets of the legislators and/or their associates, disproportionate to their known sources of income, would constitute 'undue influence' and consequently a corrupt practice." (10 marks, 150 words)

Model answer. Section 123 treats bribery, undue influence, specified identity or religious appeals, promotion of enmity, false candidate statements, prohibited transport, excess expenditure and prohibited public-servant assistance as corrupt practices. Undue influence under section 123(2) targets direct or indirect interference with the free exercise of an electoral right. Disproportionate growth in a legislator's or associate's assets may raise disclosure, tax or anti-corruption concerns, but without an electoral nexus showing coercion or interference with voter freedom it is not automatically undue influence. *ADR* and *PUCI* instead support full candidate-information disclosure and verification. If illicit assets finance a proven inducement, bribery or another corrupt practice may arise on its own elements. The correct response is rigorous disclosure and investigation, not stretching a defined electoral wrong beyond its text.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

ORIGINAL MAINS 1 - Explain why Article 324 is a reservoir of power but not a source of authority contrary to election law. (10 marks, 150 words)

Model answer. Article 324 grants the ECI plenary superintendence, direction and control so that unforeseen gaps do not paralyse a free and fair election. In *Mohinder Singh Gill v. CEC* (1978), the Supreme Court treated it as a reservoir where legislation is silent. This permits urgent, election-specific safeguards based on relevant material. However, Parliament possesses election-law competence under Article 327. *A.C. Jose v. Sivan Pillai* (1984) therefore held that ECI may supplement, not supplant, the Act and Rules. The Commission also owes context-sensitive natural justice and recorded reasons. Thus, Article 324 is decisive in a genuine legal vacuum but obedient where the field is occupied. Its legitimacy lies in combining operational flexibility with the rule of law.

ORIGINAL MAINS 2 - Distinguish the constitutional position of the CEC from that of the other Election Commissioners. (10 marks, 150 words)

Model answer. The CEC and other ECs are functionally equal members of a multi-member Commission. *T.N. Seshan v. Union of India* (1995) upheld collegial equality; section 18 of Act 49 of 2023 seeks unanimity and otherwise uses majority opinion. The CEC is Chairman, not a unilateral superior. Security, however, is asymmetric. The CEC can be removed only in the same manner and on the same grounds as a Supreme Court judge, and Article 324 protects the CEC against disadvantageous variation of service conditions. Other ECs have the same statutory salary and term framework but may be removed by the President only on the CEC's recommendation. Thus, equality of vote coexists with unequal tenure protection. Reform should protect collegial dissent without making serious misconduct practically unaccountable.

ORIGINAL MAINS 3 - Critically examine the appointment architecture under Act 49 of 2023. (15 marks, 250 words)

Model answer. Article 324(2) expressly permits Parliament to regulate appointment. Act 49 of 2023 therefore validly replaces the earlier executive convention and the temporary *Anoop Baranwal* arrangement.

The design has four stages. Section 5 limits eligibility to Secretary-equivalent persons of integrity with election-management knowledge and experience. Section 6 creates a Law-Minister-led Search Committee with two Secretary-rank members and a panel of five. Section 7 establishes the Prime Minister, Lok Sabha Opposition leader and a PM-nominated Union Cabinet Minister as the Selection Committee. Section 8 allows transparent self-regulated procedure and consideration beyond the panel; the President appoints by warrant.

Its strengths are a statutory process, express qualifications and Opposition participation. Its weaknesses are executive control of the search, a two-to-one executive majority, an outside-panel power and no express duty to publish comparative reasons. These features may reduce perceived independence even if individual appointments are meritorious.

Anoop Baranwal did not permanently require the CJI; it operated only until Parliament legislated. As of 7 September 2026, the Act operates and no official final merits judgment or stay was located; the 22 March 2024 order refused interim interference.

Reform should publish criteria, give members adequate dossiers, record comparative reasons, strengthen search independence and protect meaningful Opposition participation. Legality is established by statute; legitimacy depends on credible insulation from the incumbent executive.

ORIGINAL MAINS 4 - The Model Code of Conduct gains from flexibility but loses legitimacy through opacity. Discuss. (15 marks, 250 words)

Model answer. The MCC is a non-statutory, consensus-based code operating through Article 324 from schedule announcement until completion. Its flexibility is an institutional strength. The ECI can rapidly stop misuse of official machinery, restrain campaigning, seek responses, transfer officers and refer independently illegal conduct without awaiting a full criminal trial. Such preventive speed protects a level playing field when delayed correction would be meaningless.

Yet flexibility creates legitimacy risks. Direct sanctions are limited, similar complaints may receive different timelines, short orders may not reveal the standard applied, and MCC language can blur with statutory offences. A code cannot itself create crimes or disqualifications. Bribery, communal appeals and other conduct must satisfy the RPA, BNS or another applicable law. *Abhiram Singh* demonstrates that statutory corrupt-practice adjudication remains judicial.

Full codification may replace swift prevention with slow litigation. A hybrid is preferable: retain flexible campaign etiquette; legislate clear sanctions for serious misuse of government resources and repeated non-compliance; distinguish preventive from punitive orders; provide a short hearing where feasible; and publish a searchable complaint, timeline, reason and referral ledger.

The MCC should remain quick, but not inscrutable. Transparent consistency converts moral authority into durable institutional trust.

ORIGINAL MAINS 5 - Evaluate the ECI as an electoral-trust ecosystem rather than merely an election-day manager. (20 marks, 250 words)

Model answer. Article 324 makes the ECI responsible for the complete conditions of electoral choice, not only polling day. Trust begins with inclusive, accurate rolls under the RPA 1950. It continues through neutral staff under Article 324(6), lawful nominations, candidate disclosure after *ADR/PUCL*, expenditure and paid-news monitoring, MCC enforcement and secure EVM-VVPAT custody. It ends with transparent counting, reasoned corrective orders and the High Court election-petition remedy under Article 329 and the RPA 1951.

This ecosystem explains why machine security alone is insufficient. *Subramanian Swamy* and the 2024 *ADR v. ECI* judgment strengthened verifiability, but a voter excluded from the roll or exposed to hidden money power remains disenfranchised in substance. Similarly, broad Article 324 authority cannot replace law: *Mohinder Singh Gill* permits gap-filling, while *A.C. Jose* bars statutory contradiction.

Institutional independence also has multiple links - appointment, removal, collegiality, secretariat, finance and transparent reasons. Act 49 of 2023 creates a lawful appointment process but leaves an executive-dominance debate; Article 324(6) supplies staff without creating an autonomous cadre.

Reform must therefore be sequenced: independent search and reasoned selection; permanent secretariat and predictable finance; deletion safeguards and accessible roll appeals; real-time political-finance and digital-ad disclosure; comparable MCC decisions; audited technology; and time-bound election courts. The ECI earns authority when every stage is lawful, observable and correctable.

ORIGINAL MAINS 6 - Propose a balanced reform programme for political parties, criminalisation and campaign information without granting unbounded power to the ECI. (20 marks, 250 words)

Model answer. Reform must respect the division between legislation, ECI administration, party autonomy and judicial adjudication.

First, Parliament should strengthen party transparency: periodic audited accounts, beneficial-donor disclosure, digital-ad libraries, minimum internal-election and membership rules, and a narrowly drafted deregistration regime with notice and appeal. *Institute of Social Welfare* shows why ECI cannot invent a general cancellation power under section 29A.

Second, criminalisation requires information and speed rather than guilt by accusation. *ADR/PUCL* support affidavits; *Public Interest Foundation* requires prominent publicity and party reasons; *Lily Thomas* ensures immediate qualifying conviction consequences. Dedicated courts and sanctions for false disclosure should complement protection against politically motivated cases.

Third, campaign information needs real-time expenditure reporting, third-party spending rules, paid-news attribution on evidence, platform ad transparency and rapid deepfake provenance notices. ECI should administer these standards, but speech restrictions and offences need clear law.

Fourth, MCC reform should be hybrid: retain preventive flexibility, codify serious misuse of official machinery, and publish complaint timelines and reasons. Symbol disputes should remain under the Symbols Order with reasoned paragraph 15 analysis, not become general control of party property or ideology.

Finally, oversight must be reciprocal: a more independent ECI requires transparent selection, protected staff, published enforcement standards and timely judicial review. The objective is accountable electoral competition, not an omnipotent regulator.